BY ORDER OF THE COMMANDER
UNITED STATES AIR FORCES IN
EUROPE – AIR FORCE AFRICA

UNITED STATES AIR FORCES IN
EUROPE – AIR FORCE AFRICA
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Personnel

USAFE-AFAFRICA CIVILIAN SERVICE PROGRAM – GERMANY

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This instruction implements Air Force Policy Directive (AFPD) 36-1, *Appropriated Funds Civilian Management and Administration*. It prescribes policy and procedures governing employment, administration, and logistic support of Non-United States (US) Citizen personnel employed under the terms of Appendix Z to the Collective Tariff Agreement (CTA II) or individual employment agreements related to it. This instruction applies to all United States Air Forces in Europe - Air Forces Africa (USAFE-AFAFRICA) activities serviced by a Civilian Personnel Section (CPS) in Germany. It does not apply to Air National Guard (ANG) and Air Force Reserve Command (AFRC) units. This publication may not be supplemented or modified at a lower level. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) by routing the AF Form 847, Recommendation for Change of Publication from the field through the appropriate functional chain of command. In accordance with AFI 33-360, the authorities to waive wing/unit level requirements in this publication are identified with a tier ("T-0, T-1, T-2, T-3") number following the compliance statement. Submit requests for waivers through the chain of command to the appropriate tier waiver approval authority, or alternately, to the Publication OPR for non-tiered compliance items. Ensure that all records created due to processes prescribed in this publication are maintained IAW Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of IAW the Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS).

SUMMARY OF CHANGES

This revision updates the implementation directive and references, revises designations, wording and terminology. It establishes the option to use automated systems for monitoring the meals consumption.

1. Authorities. Legal authority is derived from the following documents:

1.1. Article IX (4), North Atlantic Treaty Organization (NATO) Status of Forces Agreement (SOFA).

1.2. Exchange of Notes between the Ambassador of the United States, Bonn, and the German Federal Minister of Foreign Affairs, 11 Apr 1957.

1.3. Article 56 of the Supplementary Agreement to the NATO SOFA with respect to Foreign Forces stationed in the Federal Republic of Germany, 03 Aug 1959, as amended.

1.4. Collective Tariff Agreement (CTA II), as amended.

2. General:

2.1. Authorizations and funding for Civilian Service (CS) personnel are not separately authorized but are part of the total authorizations and budget allocation for Non-US Citizen personnel employed with the organization or installation employing CS personnel.

2.2. Installations or organizations employing CS personnel will provide logistic support in the form of dormitory-type bachelor quarters, food service, and uniform work clothing **(T-3)**. **Attachment 2** prescribes policy and procedures for use of Government-controlled accommodations by CS personnel and provides instructions for completing the AF Form 825, *Notification of Personnel Action (Non-US (Germany))*, as it applies to housing. **Attachment 3** prescribes policy and procedures for providing meals to CS employees.

3. Employment of CS Personnel:

3.1. CS employees will be hired and administered by the CPS servicing the organization or installation **(T-3)**.

3.2. The Chief, Personnel Division (HQ USAFE-AFAFRICA/A1K) may approve requests for the establishment or conversion of positions for CS employment if economically feasible and advantageous, and when any of the following conditions exists: **(T-3)**

3.2.1. The employment of CS employees will increase operational efficiency and it is intended to establish or convert an entire category of jobs within a given functional area or organizational assignment.

3.2.2. Employment of CS employees is considered advantageous in functional areas where availability, mobility, uniform appearance, group supervision, and teamwork are essential for the accomplishment of the mission.

3.2.3. Logistical support is considered an incentive in the recruitment for hard-to-fill vacancies.

3.3. The conversion of CS positions to another tariff under the CTA II requires full justification and must be approved by HQ USAFE-AFAFRICA/A1K **(T-3)**. Conversion of employees from another tariff under the CTA II to CS status or vice versa is not mandatory

nor will any coercion be exercised to achieve conversion plans requested in accordance with paragraphs **3.1** and **3.2**. Requests will include a specific plan of action if filled positions are affected **(T-3)**.

4. Terms and Conditions of Employment:

4.1. The terms and conditions of CS personnel employment are established in Appendix Z to the CTA II. Further provisions are outlined in USAFEI 36-723, *Implementation of Collective Tariff Agreement (CTA II) and Overtariff Conditions for Labor in the Federal Republic of Germany*, and USAFEI 36-701, *Employment of Local National Employees at Other Than Regular Place of Work or Domicile (Germany)*.

4.2. Under authority of the exchange of notes between the U.S. Ambassador, Bonn, and the German Federal Minister of Foreign Affairs, 11 Apr 1957, and by virtue of Article IX, (6) of the SOFA, CS employees may be transferred at any time to any place within the Federal Republic of Germany if the transfer is in the interest of the US Air Force.

4.3. On appointment, CS employees will sign two copies of USAFE Form 29, *Additional Conditions of Employment for United States Air Forces in Europe Civilian Service Employees*. The employee will keep one copy; the other one will be attached to AF Form 825 and filed in the Official Personnel Folder.

4.4. Uniform work clothing allowances for CS employees are prescribed in USAFEI 36-729, *Uniform Work Clothing for Non-US Citizen Personnel, Germany*.

5. Personnel Identification:

5.1. Common Access Cards (CAC) of 435th Construction and Training Squadron (CTS) personnel shall authorize access to admin areas of all USAFE-AFAFRICA Bases.

5.2. Issuance and control of firearm certificates required under Article 12 of the Supplementary Agreement to the NATO SOFA will be in compliance with AFI 31-117, *Arming and Use of Force by Air Force Personnel*, as supplemented.

5.3. Insignia and badges to identify CS personnel will be in compliance with USAFEI 36-729.

SUSAN M. AIROLA-SKULLY, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 36-1, *Appropriated Funds Civilian Management and Administration*, 18 Mar 2019

AFI 31-117, *Arming and Use of Force by Air Force Personnel*, 2 February 2016

AFMAN 33-363, *Management of Records*, 1 March 2008

USAFEI 36-701, *Employment of Local National Employees at Other Than Regular Place of Work or Domicile (Germany)*, 3 March 2011

USAFEI 36-109, *Time and Attendance Reporting for Non-US Citizen Employees*, 28 August 2019

USAFEI 36-723, *Implementation of Collective Tariff Agreement (CTA II) and Overtariff Conditions for Labor in the Federal Republic of Germany*, 29 July 1999

USAFEI 36-729, *Uniform Work Clothing for Non-US Citizen Personnel*, Germany, 30 March 2016

North Atlantic Treaty Organization (NATO) Status of Forces Agreement (SOFA) – Article IX (4) & (6)

Article 56 of the Supplementary Agreement to the NATO SOFA with respect to Foreign Forces stationed in the Federal Republic of Germany, 03 Aug 1959, as amended

Exchange of Notes between the Ambassador of the United States, Bonn, and the German Federal Minister of Foreign Affairs, 11 Apr 1957

German Social Security Remuneration Ordinance (Sozialversicherungsentgeltverordnung)

Tariff Agreement dated December 16, 1966 for the Stationing Forces Employees in the Federal Republic of Germany (Collective Tariff Agreement), as amended

Prescribed Forms

USAFE Form 17, *USAFE Meal Consumption Card (Accountable)(To Be Ordered by USAFE Accounts Only*

USAFE Form 29, *Additional Conditions of Employment for United States Air Forces Europe Civilian Service Employees*

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

AF Form 825, *Clinical Privileges - Radiologist*

AF Form 1846, *Request for and Record of Organizational Account*

USAFE Form 52, *Request for Personnel Action – Non-US (Germany)*

Abbreviations and Acronyms

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFPDC—Air Force Publishing Distribution Center

AFRIMS—Air Force Records Information Management System

CAC—Common Access Card

CPS—Civilian Personnel Section

CS—Civilian Service

CSU—Civilian Service Unit

CTA II—Collective Tariff Agreement

CTS—Construction and Training Squadron

DCPDS—Defense Civilian Personnel Data System

DFAC—Dining Facility

NATO—North Atlantic Treaty Organization

OAR—Organizational Account Representative

OPR—Office of Primary Responsibility

RDS—Records Disposition Schedule

SOFA—Status of Forces Agreement

T&A—Time and Attendance

US—United States

USAFE-AFAFRICA—United States Air Forces in Europe – Air Force Africa

Terms

Civilian Service Employees—Non-US citizen personnel employed by the US Forces in Germany under the terms of Appendix Z to CTA II.

Civilian Service Unit—A group of CS employees integrated into a military organization or organized as a closed unit to provide a mobile, non-combatant civilian component, supporting U.S. Air Force units in their fulfillment of normal peacetime tasks. A Civilian Service Unit (CSU) is not a separate U.S. Air Force element but subordinate to the U.S. Air Force commander of the military organization to which assigned or attached.

Attachment 2

USAFE CIVILIAN SERVICE PROGRAM - HOUSING

A2.1. General. This attachment establishes policy and procedures for the use of Government-controlled housing by CS employees.

A2.2. Policy. Commanders employing CS personnel will provide them adequate Government-controlled housing. Employees are not required to use the quarters unless otherwise directed in the performance of temporary duty, participation in exercises, or similar situations.

A2.3. General:

A2.3.1. Housing provided to CS employees will be dormitory-type bachelor quarters. The temporary accommodation of employees in tents during exercises or periods of temporary duty is considered housing.

A2.3.2. Upon appointment, employees decide if they will reside in Government quarters or not. Later changes to this determination require a pertinent written notification of the servicing CPS, through the employing activity. The employing activity has to receive this notification by the last work day of the month preceding the effective change date.

A2.3.3. The servicing CPS will prepare an AF Form 825 to document an employee's assignment or termination of housing, change from housing provided without cost to housing at cost or vice versa, or changes in participation status. The notification will reflect the employee's determination regarding the use of quarters, the category of room provided, and the authority for a payroll deduction or exemption therefrom. Administrative instructions are contained in **A2.6**.

A2.4. Charges for Housing . Employees assigned housing will be subject to payroll deductions in accordance with the following:

A2.4.1. Deductions will be based on the rates established in the German Social Security Remuneration Ordinance (Sozialversicherungsentgeltverordnung) for the type of room (Belegungszahl) assigned, to include heating (Heizung) and light (Beleuchtung). The actual deductible amount will be one third of the rate effective at the time. Fractions will be rounded to the full Euro amount in accordance with commercial accounting principles.

A2.4.2. The appropriate monthly flat rate established in accordance with **A2.4.1**, will be reduced by 1/30 for each day a newly appointed or separated employee was not assigned housing during the pay period. No adjustment will be made if an employee does not use assigned housing for personal reasons.

A2.4.3. No deduction will be made for employees who do not permanently and predominantly reside in Government quarters or if housing is only used for short periods due to exercises or incident to temporary duty at another installation.

A2.5. Control of Housing. To ensure adequate control of housing, as well as order and cleanliness in quarters, responsible supervisors of CS employees will:

A2.5.1. Establish house rules for the occupants in cooperation with the local works council. Violation of these rules may result in disciplinary action to include forfeiture of housing privileges up to separation from employment.

A2.5.2. Assign or terminate housing and provide the servicing CPS appropriate information on USAFE Form 52, *Request for Personnel Action Non-US (Germany)*, as a basis for executing AF Form 825.

A2.5.3. Maintain a register containing the following minimum information on occupants: Name, room number, number of beds assigned to room, date quarters assigned/vacated, and date of AF Form 825 effecting the action.

A2.6. Administrative Instructions - Terminology for Housing Actions.

A2.6.1. If a housing-related action occurs in conjunction with another personnel action requiring the preparation of AF Form 825, item 4 will reflect that action rather than the housing action.

A2.6.2. If a housing-related personnel action occurs separately, terminology used in Block 4, Nature of Action, on AF Form 825 will be as follows:

A2.6.2.1. On assignment of quarters: “Quarters Assignment/Inanspruchnahme von Unterkunft.”

A2.6.2.2. On termination of quarters: “Quarters Termination/Aufgabe der Unterkunft.”

A2.6.2.3. On change from housing provided with cost to housing without cost: “Exemption from Deduction for Quarters/Befreiung vom Unterkunftsgeldabzug.”

A2.6.2.4. On change from housing provided without cost to housing with cost: “Deduction for Quarters/Unterkunftsgeldabzug.”

A2.6.2.5. On change in participation status: “Change of Quarters/Wechsel der Unterkunft.”

A2.6.3. Regardless of whether use of housing is subject to or exempt from payroll deduction under this regulation, the applicable number of persons assigned per room must be entered in German in block 14 of AF Form 825 as follows:

A2.6.3.1. For rooms with one bed: "Einzelzimmer."

A2.6.3.2. For rooms with two beds: "Doppelzimmer."

A2.6.3.3. For rooms with three beds: "3 Bett-Zimmer."

A2.6.3.4. For rooms with more than three beds: "Mehr als 3 Betten-Zimmer."

Attachment 3

USAFE CIVILIAN SERVICE PROGRAM - FOOD SERVICE

A3.1. Policy. This attachment prescribes policy and procedures for the supply of meals to CS employees:

A3.1.1. CS employees are authorized to eat in appropriated fund dining facilities (DFAC), or receive Ground Support Meals from the DFAC or comparable messing facilities. Authority also extends to periods of non-duty status, temporary duty outside the permanent duty station, or when employees are participating in exercises.

A3.1.2. Participation in messing is at the discretion of the employee unless directed during periods of temporary duty, exercises, or similar situations.

A3.2. Verification of Eligibility. CS employees will use USAFE Form 17, *USAFE Meal Consumption Card*, together with their CAC to validate eligibility to use the DFAC.

A3.3. Control of Meals Consumed. Before using a DFAC, CS employees will present the meal consumption card to the head counter who will punch or indelibly check mark the square for the respective meal on that date. These entries will be the basis for payroll deductions (**A3.5**) for meals consumed. Employees will also enter name, unit designation, and serial number of meal consumption card on signature sheets maintained in the DFAC. For Ground Support Meals, the official responsible for pick-up at the DFAC will have the meal consumption cards of all CS employees receiving such meals collected in advance so that the appropriate markings can be applied to the individual cards by the head counter at the DFAC. Usage of automated systems for scanning the employees' CAC and generating monthly meal consumption reports is also authorized.

A3.4. Charges for Meals Consumed:

A3.4.1. The amounts charged for the individual meals, i.e. breakfast (Frühstück), lunch (Mittagessen), and dinner (Abendessen) will be those established in the German Social Security Remuneration Ordinance (Sozialversicherungsentgeltverordnung) at the time and will be collected by payroll deduction. For exceptions, refer to **A3.4.5**. There will be no other charges related to food service.

A3.4.2. Total deductions for a calendar month will not exceed the monthly meal rate established in the Social Security Remuneration Ordinance.

A3.4.3. Employees will present their USAFE Form 17 to the individual preparing the Time and Attendance (T&A) reports (timekeeper) no later than the first workday following the end of the month the card was issued for. The timekeeper will mark the card to indicate that information thereon was transcribed to the T&A report before having it returned to the responsible custodian. To allow proper payroll deductions for meals actually consumed, the appropriate data will be entered as prescribed in USAFEI 36-109, *Time and Attendance Reporting for Non-US Citizen Employees*.

A3.4.4. To meet the prerequisites for reduction of travel allowance under the provisions of Appendix R, II., 1(c) to CTA II, the daily meal rate may not be charged even if the employee consumed meals at a DFAC. Days for which an employee receives a reduced travel allowance in accordance with referenced tariff provisions will be disregarded when making

entries on the T&A reports as prescribed in **A3.4.3**. USAFE Form 17 will be marked accordingly by recording the number of days not charged and proper tariff reference.

A3.4.5. Loss of the meal consumption card or failure to present it to the timekeeper in due time will result in full payroll deduction for meals for the respective period unless employees prove that they did not use a DFAC during all or part of the reporting period or were otherwise released from payment of meal charges. Evidence in support thereof will be presented to the official responsible for certifying T&A reports for decision, which, in turn, will be made a matter of record to be maintained with the retired meal consumption cards. Circumstances surrounding the loss and investigative results (**A3.5.3.4**), will also be recorded and maintained together with the meal card register.

A3.4.6. The timekeeper will collaborate with the organization's financial manager and the Food Service Officer to ensure that the Force Support Squadron receives reimbursement for the meals consumed by CS employees in the DFAC.

A3.5. USAFE Form 17, *USAFE Meal Consumption Card*.

A3.5.1. USAFE Form 17 is a serially numbered controlled form. Requisition, issue, and control will be in accordance with applicable instructions and the provisions of this attachment.

A3.5.2. The commander of a CSU will appoint an Organizational Account Representative (OAR) and an alternate for the unit. Their names will be reported with AF Form 1846, *Request for and Record of Organizational Account*, to the Air Force Publishing Distribution Center (AFPDC) at **AFDPO-AFPDC-Service@pentagon.af.mil** to identify them as the only persons to request and receive USAFE Forms 17.

A3.5.3. To ensure adequate control of meal consumption cards, custodians will:

A3.5.3.1. Obtain USAFE Form 17 from AFPDC and secure unissued cards in a locked cabinet.

A3.5.3.2. Maintain a register and other substantiating documents to account for received, issued, and destroyed or lost USAFE Forms 17. For each meal card, the register shall contain its number and period of validity, the recipient's name, grade and signature, the date of issue or turn in, as well as the date and certification of destruction.

A3.5.3.3. Ensure that all meal consumption cards are returned no later than 5 days after the end of their validity and record the date of return in the register. Verify that returned cards are annotated by the timekeeper as prescribed by **A3.4.3**.

A3.5.3.4. Investigate the loss of a meal consumption card and record the result (**A3.4.5**). Enter the fact and the date it was reported lost in the register. If the card is recovered and reissued to the employee, annotate the date in the register and mark the time period reported as lost on the USAFE Form 17 to allow appropriate deductions in accordance with **A3.4.5**. New cards issued to replace lost cards will be recalled and returned to the timekeeper when the recovered card is reissued.

A3.5.3.5. Destroy by shredding or burning meal consumption cards. Record the destruction date and sign to certify in the register. For lost meal cards, close out by entering "unrecovered" along with signature and date in the register.